

TENTATIVE RULINGS
Judge SHEILA RECIO, Dept. W8

Law & Motion is heard on Fridays at 9:30 a.m.

CIVIL COURT REPORTERS: Department W8 does not provide the services of an official court reporter for law and motion hearings. Please see the court's website at

<http://www.occourts.org/directory/cris/availability.html> for rules and procedures for court reporters obtained by the parties.

POSTING TENTATIVES: Department W8 endeavors to post tentative rulings for law and motion hearings by 5 p.m. on Thursdays. Do NOT call the Department for a tentative ruling if none is posted. **The court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

SUBMITTING ON THE TENTATIVE: If ALL sides intend to submit on the tentative ruling, please advise the Department's clerk or courtroom attendant by calling (657) 622-5908. If so advised, the tentative ruling shall become the court's final ruling and the prevailing party shall file and serve a Notice of Ruling and if appropriate, prepare a Proposed Order pursuant to Rule 3.1312 of the California Rules of Court. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

NO APPEARANCES: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court will determine if the matter is taken off calendar, the tentative ruling becomes the final ruling, or a different order is issued at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

REMOTE APPEARANCES: Department W8 conducts non-evidentiary proceedings, including law and motion via Zoom through the court's online check-in process available through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings>. All counsel and self-represented parties appearing for such hearings **must check-in at least 5 minutes before** the 9:30 a.m. hearing on Friday.

The court encourages the parties and attorneys to take advantage of remote appearances for non-evidentiary hearings to reduce travel time, parking costs, and potential hearing delays. However, keep in mind that potential technological or audibility issues could arise when using remote

technology, which may require a delay of or halt the proceedings. To help avoid such, please log in and test your equipment in advance of the hearing. Also, if technological or audibility issues arise during the proceeding, please call **(657) 622-5908**.

All remote video participants shall comply with the court's "**Guidelines for Remote appearances**", found at <https://www.occourts.org/system/files/guidelinesforremoteproceedings.pdf>.

IN-PERSON: Parties preferring to appear in-person for a law and motion hearing may do so, consistent with Section 367.75 of the Code of Civil Procedure and Orange County Local Rule 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

September 29, 2023

#	Case Name	
4	American Express Bank, FSB vs. Cyber Media Solutions LLC	<u>Motion for Judgment on the Pleadings</u> (OSC re Striking Answers of Promedia, Inc and Cyber Media Solutions, LLC and Entering Defaults)
5	Cordova vs. Providence St. Jude Medical Center	<u>5 Motions to Compel Further</u> 1. <u>Form Interrogatories from Eranio E. Cordova, Sr.</u> 2. <u>Form Interrogatories from Eranio E. Cordova, Jr.</u> 3. <u>RFAs from Phil Cordova</u> 4. <u>RFAs from Eranio E. Cordova, Jr.</u> 5. <u>RFAs from Earl John Cordova</u>

6	Hughes vs. Philips	<u>Motion to Tax Costs</u>
7	Casey vs. Arnel Management Company	<u>Motion to Compel IME</u>
9	Ahmed vs. Bank of America N.A.	<u>Motion for Summary Judgment and/or Adjudication</u>
10	FIRST TEAM REAL ESTATE - ORANGE COUNTY vs. LEWANDOWSKI	<u>Motion for Summary Judgment and/or Adjudication</u> <u>Motion for Summary Judgment and/or Adjudication</u> <u>Motion to File Documents Under Seal</u> <u>Motion to File Documents Under Seal</u>
11	Tran vs. Garden Grove Unified School District	<u>Demurrer to First Amended Complaint</u> <u>Motion to Strike Portions of First Amended Complaint</u> (Case Management Conference)
12	Burnham vs. Pratt	<u>Motion to Expunge Lis Pendens</u>